

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name

Case No.

Street Address

Judge

City

State

Zip Code

Magistrate

Plaintiff

vs.

Name

Street Address

City

State

Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Counterclaim for Divorce without Children, and allows you to agree with or dispute the statements made in the Counterclaim for Divorce without Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

REPLY TO COUNTERCLAIM FOR DIVORCE WITHOUT CHILDREN

In Reply to Defendant's Counterclaim for Divorce, Plaintiff states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation
2. Plaintiff alleged proper jurisdiction and venue.

ADMIT DENY

- | | | |
|--------------------------|--------------------------|---|
| ☐ | ☐ | 3. The date of Plaintiff and Defendant's marriage stated in the Counterclaim. |
| ☐ | ☐ | 4. The place of Plaintiff and Defendant's marriage stated in the Counterclaim. |
| ☐ | ☐ | 5. Neither party is pregnant. |
| ☐ | ☐ | A party is pregnant. |
| ☐ | ☐ | 6. Any child(ren) born from or adopted during this marriage or relationship is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves. |
| ☐ | ☐ | 7. Plaintiff is an active-duty servicemember of the United States military. |
| ☐ | ☐ | Defendant is an active-duty servicemember of the United States military. |
| | | 8. Plaintiff further admits or denies the following grounds for divorce: |
| ☐ | ☐ | Plaintiff and Defendant are incompatible. |
| ☐ | ☐ | Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year. |
| ☐ | ☐ | Plaintiff or Defendant had a Husband or Wife living at the time of the marriage. |
| ☐ | ☐ | Plaintiff has been willfully absent for one (1) year. |
| ☐ | ☐ | Plaintiff is guilty of adultery. |
| ☐ | ☐ | Plaintiff is guilty of extreme cruelty. |
| ☐ | ☐ | Plaintiff is guilty of fraudulent contract. |
| ☐ | ☐ | Plaintiff is guilty of gross neglect of duty. |
| ☐ | ☐ | Plaintiff is guilty of habitual drunkenness. |
| ☐ | ☐ | Plaintiff is imprisoned in a state or federal correctional institution at the time of the filing of the Complaint. |
| ☐ | ☐ | Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant. |
| ☐ | ☐ | 9. Plaintiff and Defendant are owners of real estate and/or personal property. |
| ☐ | ☐ | 10. Plaintiff denies any allegations not specifically admitted. |

The Plaintiff requests:

- ☐ the Counterclaim for Divorce be dismissed OR
☐ a divorce be granted and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City State Zip Code

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(Check the boxes that apply)

Plaintiff delivered a copy of the Reply to Counterclaim for Divorce without Children.

On: (Date) _____, 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

At: (Print address or fax number) _____

- By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
 - ☐ Regular U.S. Mail
 - ☐ Fax
 - ☐ Hand Delivery
 - ☐ Other: _____

Signature